



U.S. Department
of Transportation

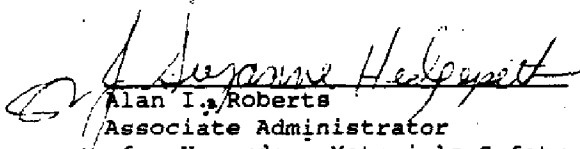
Research and
Special Programs
Administration

401 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9430 (EXTENSION)
THIRD REVISION March 6, 1989

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9430 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

DE 7-100
(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

ENPAC Corporation
Jacksonville, FL

November 18, 1993

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9430
(THIRD REVISION)

MAR 6 1989

1. ENPAC Corporation, Jacksonville, Florida, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation of damaged or leaking packages of hazardous materials described in paragraph 3 below in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the manufacture, marking and sale of a polyethylene/fiberglass removable head salvage drum of 90-gallon capacity for overpacking damaged or leaking packages of hazardous materials, or for packing hazardous materials that have spilled or leaked, for repackaging or disposal, and provides no relief from any regulation other than as specifically stated.
 2. BASIS. This exemption is based on ENPAC Corporation (Formerly Bondico, Incorporated) application dated November 10, 1988, and supplementary letters dated April 22, September 30, 1988 and January 18, 1989, submitted in accordance with 49 CFR 107.103 and 107.105 and the public proceeding thereon.
 3. HAZARDOUS MATERIALS (Descriptor and class). Hazardous materials in salvage drums conforming to the provisions of Section 173.3(c).
 4. PROPER SHIPPING NAME (49 CFR 172.101). As specified in 49 CFR 172.101; or the specific chemical name or generic commodity description, as appropriate.
 5. REGULATION AFFECTED. 49 CFR 173.3(c).
 6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.
 7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification polyethylene/fiberglass reinforced plastic (FRP) dual laminate composite drum of 90-gallon capacity and having a nominal wall thickness of 0.250-inch. The three-phase drum is constructed of: an inner unit rotationally molded of linear medium density polyethylene resin, which is bonded to fiberglass, which, in turn, is bonded by means of resin transfer molding, with a polyester resin and fiberglass, into an FRP casing. The container is described in Bondico's letters and drawings dated January 11, February 21, and April 23, 1985, and drawing (SCO-010) dated May 4, 1986. The removable head drum is closed by means of a standard 14 gauge bolted hoop ring with neoprene or polyethylene gasket as shown in Figure III.2. and photographs included in petitioner's application, or an inverted lid with gasket as described in Bondico, Inc.'s application dated April 14, 1986, and drawing NLD-010.
- Drum may be used, as a salvage drum, for overpacking damaged or leaking packages of hazardous materials, or for packing hazardous materials that have spilled or leaked, for repackaging or disposal. Each drum must be

capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.19-7(a) (DOT-34) except for the hydrostatic pressure test which is required at five pounds per square inch gauge rather than 15 pounds per square inch gauge.

8. SPECIAL PROVISIONS.

- a. Shippers may use the packaging(s) covered by this exemption pursuant to 49 CFR 173.22a.
- b. The conditions specified in 49 CFR 173.3(c) must be satisfied when the drum authorized by this exemption is used.
- c. Each drum must be marked "DOT-E 9430" in addition to markings prescribed in 49 CFR 173.3(c)(3).
- d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- e. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. November 1, 1990.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

MAR 6 1989

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA.